EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 59188/17
Fuzuli SHAHHUSEYNOV against Azerbaijan
and 7 other applications
(see appended table)

The European Court of Human Rights (Fifth Section), sitting on 8 September 2022 as a Committee composed of:

Stéphanie Mourou-Vikström*, President,*
Ivana Jelić*,*
Kateřina Šimáčková*, judges,*
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants and their representatives is set out in the appended table.

The applicants' complaints under Article 11 of the Convention concerning the unlawful or disproportionate measures against organisers and participants of public assemblies were communicated to the Azerbaijani Government ("the Government"). The applicants' other complaints based on the same facts were also communicated under Article 6 of the Convention, given the relevant well-established case-law of the Court.

The applicant in application no. 16094/18 died on 10 March 2019. On 27 February 2022 Mr Valikhan Khalig oglu Huseynov, the applicant's father, expressed his wish to continue the proceedings before the Court in the applicant's stead. The Court notes that in various cases in which an applicant has died in the course of the Convention proceedings, it has taken into account the statements of the applicant's heirs or of close family members expressing the wish to pursue the proceedings before the Court (see, among other

authorities, *Jėčius v. Lithuania*, no. 34578/97, § 41, ECHR 2000-IX; *Pisarkiewicz v. Poland*, no. 18967/02, §§ 30-33, 22 January 2008; and *Ergezen v. Turkey*, no. 73359/10, §§ 27-30, 8 April 2014). The Court has accepted that the next-of-kin or heir may in principle pursue the application, provided that he or she has sufficient interest in the case (see *Centre for Legal Resources on behalf of Valentin Câmpeanu v. Romania* [GC], no. 47848/08, § 97, ECHR 2014, and *Ksenz and Others v. Russia*, nos. 45044/06 and 5 others, § 86, 12 December 2017). In view of the above and having regard to the circumstances of the case, the Court holds that Mr Valikhan Khalig oglu Huseynov has standing to continue the present proceedings in his late son's stead.

The Court received the friendly-settlement declarations, signed by the parties, under which the applicants and the applicant's heir in application no. 16094/18 agreed to waive any further claims against Azerbaijan in respect of the facts giving rise to these applications, subject to an undertaking by the Government to pay them the amounts detailed in the appended table. These amounts will be converted into the currency of the respondent State at the rate applicable on the date of payment, and will be payable within three months from the date of notification of the Court's decision. In the event of failure to pay these amounts within the above-mentioned three-month period, the Government undertake to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the cases.

THE LAW

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and the Protocols thereto and finds no reasons to justify a continued examination of the applications.

In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides that the applicant's father and heir in application no. 16094/18 can pursue the application in his late son's stead;

Decides to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 29 September 2022.

Viktoriya Maradudina Acting Deputy Registrar	Stéphanie Mourou-Vikström President

APPENDIX

List of applications raising complaints under Articles 11 and 6 of the Convention (unlawful or disproportionate measures against organisers and participants of public assemblies and unfair trial in administrative offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Date of receipt of Government's declaration	Date of receipt of applicant's declaration	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
1.	59188/17 04/08/2017	**Fuzuli Khanhuseyn oglu SHAHHUSEYNOV** 1968	Javad JAVADOV Baku	30/06/2022	08/07/2022	2,600	250 (to be paid directly to the representative Mr Javad Javadov's bank account)
2.	68886/17 09/09/2017	**Imamaddin Novruz oglu MAHARRAMLI** 1989	Javad JAVADOV Baku	30/06/2022	08/07/2022	2,600	250 (to be paid directly to the representative Mr Javad Javadov's bank account)
3.	70434/17 15/09/2017	**Mahammad Asgar oglu HABIBOV** 1996	Javad JAVADOV Baku	30/06/2022	08/07/2022	2,600	250 (to be paid directly to the representative Mr Javad Javadov's bank account)
4.	70436/17 15/09/2017	**Salman Abasali oglu SULTANOV** 1990	Javad JAVADOV Baku	30/06/2022	08/07/2022	2,600	250 (to be paid directly to the representative Mr Javad Javadov's bank account)
5.	12712/18 02/03/2018	**Azer Asabali oglu SHAMKHALOV** 1993	Khalid BAGIROV Baku Ulkar ALIYEVA Baku	30/06/2022	28/07/2022	2,600	250 (to be paid directly to the representative Mr Khalid Bagirov's bank account)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Date of receipt of Government's declaration	Date of receipt of applicant's declaration	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
6.	16090/18 19/03/2018	**Ayaz** **Habib oglu** **MAHARRAMOV** 1982	Tural HAJIBEYLI Baku	30/06/2022	23/06/2022	2,600	250
7.	16094/18 19/03/2018	**Khalgi** **Valikhan oglu** **HUSEYNOV** Born in 1989 Deceased in 2019 Applicant's heir **Valikhan** **Khalig oglu** **HUSEYNOV** 1961	Tural HAJIBEYLI Baku	25/07/2022	Date of receipt of the declaration of the applicant's heir 28/06/2022	2,600	250
8.	16215/18 19/03/2018	**Babak** **Gazanfar oglu** **HASANOV** 1973	Tural HAJIBEYLI Baku	30/06/2022	23/06/2022	2,600	250

[1] Plus any tax that may be chargeable to the applicants or heir of the applicant in application no. 16094/18
[2] Plus any tax that may be chargeable to the applicants or heir of the applicant in application no. 16094/18.